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Networking and Information Technology Research and Development (NITRD)
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Re: Response to the Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

At the SAG-AFTRA Los Angeles New Technology Committee, we have worked extensively on the technical, legal, and operational frameworks needed to protect digital identities—including image, likeness, and voice data—from exploitation through artificial intelligence. While my comments draw upon this expertise, I am not submitting this response in any official organizational capacity, rather am responding to this RFI as a private citizen with specialized knowledge of digital identity protection challenges and solutions.

Performers are the proverbial “canaries in the coal mine” of digital identity, because our livelihoods depend on protecting our personas. Yet the deepfake crisis extends far beyond entertainment, posing urgent risks to national security.

In reality, AI-generated synthetic media is advancing at a staggering pace—offering enormous potential for American innovation while simultaneously heightening the threat of identity theft and malicious impersonation. As directed by Executive Order 14179 (January 23, 2025), this submission outlines a strategic framework to enhance America's AI dominance by establishing digital identity protection as critical infrastructure.

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(responding as a private citizen)

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Digital Identity Protection as Critical Infrastructure for American AI Leadership

In response to the Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

Executive Summary

The exponential growth of AI-generated synthetic media requires immediate action to protect Americans' digital identities—specifically, their faces, voices, and likenesses. This proposal addresses how unauthorized manipulation of these biometric characteristics threatens national security, economic stability, and individual rights, while creating market opportunities for American technology leadership.

In accordance with Executive Order 14179 (January 23, 2025), this proposal establishes digital identity protection as critical infrastructure—creating a framework that addresses security vulnerabilities without hampering innovation.

Rather than imposing unnecessary regulatory burdens on private sector innovation, we advocate for a market-driven approach that creates new opportunities for American companies while addressing the urgent security challenges posed by synthetic media. By establishing clear standards, creating appropriate market incentives, and focusing on critical infrastructure protection, the Administration can catalyze private sector solutions to this growing threat while maintaining America's competitive edge.

This framework directly supports the AI Action Plan's goal of "sustaining and enhancing America's AI dominance" while ensuring that "unnecessarily burdensome requirements do not hamper private sector AI innovation."

The Synthetic Media Crisis: Evidence and Impact

Documented Incidents

The threat is no longer theoretical. Deepfake scams are responsible for an estimated \$12 billion in fraud losses globally. Projections suggest these numbers could reach \$40 billion over the next three years.¹ In December, 2024, the FBI warned the public that criminals exploit generative artificial intelligence (AI) to commit fraud on a larger scale which increases the believability of their schemes.²

¹ Chris Westfall, "[AI Deepfakes of Elon Musk on the Rise, Causing Billions in Fraud Losses](#)," Forbes, November 29, 2024.

² Internet Crime Complaint Center, FBI "[PSA241203](#)," IC3, 2024.

Consider these examples from the past 18 months:

- **January 2024:** Deepfake robocalls impersonating President Biden³ targeted New Hampshire voters, demonstrating election interference capabilities
- **February 2024:** ARUP Engineering Scam⁴: \$25 million lost through deepfaked CFO audio
- **February 2024:** Sexually explicit AI-generated images of Taylor Swift⁵
- **April 2024:** School principal targeted by racist deepfake⁶, damaging community trust and institutional reputation

The technology enabling these attacks requires minimal expertise, with convincing voice replicas possible from just 3 seconds of audio and visual deepfakes achievable from a single photograph.

Economic and National Security Impact

Digital identity attacks directly threaten America's economic and national security interests:

- 22% of critical infrastructure organizations report attempted deepfake-based social engineering⁷
- Defense and intelligence communications increasingly targeted by synthetic impersonation⁸
- Deloitte's Center for Financial Services predicts that gen AI could enable fraud losses to reach US\$40 billion in the United States by 2027⁹

As AI capabilities continue to accelerate exponentially, these impacts will intensify. The Bipartisan House Task Force Report on Artificial Intelligence (December 2024) specifically identified this gap, concluding that "there is currently no single, optimal technical solution to content authentication."¹⁰

In addition, China has prioritized the development of synthetic media and deepfake technologies, leveraging them for influence operations and disinformation campaigns.

³ Associated Press, "[New Hampshire Primary: Biden, AI Deepfake Robocall](#)," AP News, February 2024.

⁴ David Elliott, "[This Happens More Frequently Than People Realize](#)," Arup Chief on the Lessons Learned from a \$25m Deepfake Crime," World Economic Forum, February 4, 2025

⁵ Leah Sarnoff, "[Taylor Swift and No AI Fraud Act: How Congress Plans to Fight Back Against AI Deepfakes](#)," ABC News

⁶ [Deepfake of Principal's Voice Is the Latest Case of AI Being Used for Harm](#)," U.S. News & World Report, April 29, 2024

⁷ Cybersecurity Ventures, "[Deepfake Fraud: The New Frontier in Cybercrime](#)," Cybersecurity Ventures, 2024

⁸ [CSI: Deepfake Threats](#)," U.S. Department of Defense, September 12, 2023

⁹ Val Srinivas, "[How Generative AI Is Making Fraud a Lot Easier—and Cheaper—to Pull Off](#)," Deloitte Center for Financial Services, May 29, 2024

¹⁰ Bipartisan House Task Force on Artificial Intelligence, [AI Task Force Report](#), FINAL (Washington, DC: U.S. Speaker of the House, December 2024).

U.S. intelligence has documented instances where Chinese operatives prepared AI-generated content to mislead voters during the 2020 election¹¹, underscoring their capability to amplify false narratives. Additionally, Beijing appears to have a dual stance on deepfakes—strict regulation domestically due to potential socio-economic and security threats, coupled with an ambition to leverage them for international influence operations¹². While China enforces strict domestic regulations on deepfake use¹³, its military and intelligence services actively exploit these technologies for international influence operations, posing a direct threat to American democratic processes and critical infrastructure communications

Three Critical Framework Gaps

America's digital identity infrastructure faces three critical gaps that require policy attention to ensure continued AI leadership:

1. Content Provenance Standards

While California [SB 942](#) and the proposed federal [COPIED Act](#) address watermarking requirements, enforcement mechanisms and technical standards remain undefined. The market urgently requires clear, interoperable standards that can function across diverse media types and platforms. These standards must establish a reliable chain-of-custody for digital content while being resistant to tampering and transformation. Crucially, they need to operate with minimal performance impact to ensure widespread adoption across the digital ecosystem.

2. Verification Infrastructure

No standardized system exists to authenticate digital content across platforms. An effective verification framework would need to provide real-time authentication before content distribution, functioning seamlessly across the entire content ecosystem – from social media to messaging platforms to broadcast media. This framework must carefully balance robust security with acceptable performance and user experience, preferably operating through distributed rather than centralized architecture.

The technology to steal and manipulate digital identities is already widespread and accessible. The technology to protect Americans must be equally robust and universally deployed.

¹¹ CNN, "[US Intelligence Spotted Chinese, Iranian Deepfakes in 2020 Aimed at Influencing Voters](#)," May 15, 2024.

¹² Jamestown Foundation, "[Deepfakes with Chinese Characteristics: PRC Influence Operations in 2024](#)," March 29, 2024.

¹³ Giulia Interesse, "[China to Regulate Deep Synthesis \(Deepfake\) Technology Starting 2023](#)," China Briefing, December 20, 2022.

3. Consent Mechanisms

While California [AB 2602](#) and the proposed [NO FAKES Act](#) establish important consent requirements, implementation standards remain critically underdeveloped. A robust consent framework must recognize that digital identity is fundamentally personal property that individuals have the right to control. Effective consent systems need to establish clear, explicit permission boundaries that prevent unauthorized use while enabling legitimate applications.

Such frameworks should provide granular control options tailored to different contexts—whether for medical professionals, performers, the military, governance, or everyday citizens—while maintaining consistent protection standards. The technical implementation must ensure that consent information travels with content across platforms and jurisdictions, creating a reliable accountability system that defends individual rights without impeding innovation.

Most importantly, these systems must transform abstract legal protections into practical, enforceable mechanisms that ordinary people can understand and digital systems can automatically enforce.

Such a framework can protect fundamental rights that all Americans value: consent, identity, and protection from fraud. These are shared values that transcend partisan divides.

Alignment with AI Action Plan Objectives

This framework directly responds to Executive Order 14179's directive to remove barriers to American AI leadership by creating market certainty without imposing government mandates that would stifle innovation.

- **Enhancing America's AI Dominance:** By establishing global leadership in digital identity verification, America can set standards that are advantageous for U.S. companies in the global AI marketplace.
- **Removing Innovation Barriers:** The framework emphasizes market-driven solutions rather than government-built systems, creating certainty for private sector innovation without imposing unnecessary technical constraints.
- **National Security Enhancement:** Digital identity protection directly supports the national security objectives outlined in Executive Order 14179 by protecting critical communication systems from synthetic media attacks.

Policy Recommendations

We recommend the following policy actions to address these critical gaps while advancing America's AI leadership:

1. Designate Digital Identity as Critical Infrastructure

Digital identity verification should be formally designated as critical infrastructure, receiving the same priority and protection as other essential systems. This formal designation enables coordinated security responses to major incidents from foreign and domestic threats while facilitating public-private cooperation on standards. By focusing resources on this critical vulnerability, we create market opportunities for American companies to lead globally.

Just as we use multi-factor authentication to protect our financial accounts, we need automated systems to verify digital identities at scale for all Americans.

2. Establish Federal Standards Aligned with State Initiatives

The Administration should establish federal standards that build upon bipartisan, state-level initiatives such as California [SB 942](#) and [AB 2602](#), Tennessee's [ELVIS Act](#), and Illinois' [SB 3325](#). These standards should provide technical baseline requirements without prescribing specific implementations, ensuring interoperability across state boundaries. This approach creates market certainty for technology developers while establishing clear compliance timelines that balance security needs with innovation.

3. Implement Authentication Requirements for Critical Communications

Federal agencies should require authentication for communications in high-risk domains:

- Government and military command communications
- Critical infrastructure operational directives
- Emergency management and public safety messaging
- Financial system notifications

4. Create Market Incentives for Verification Systems

Rather than building government-operated systems, the most effective approach is creating market incentives for private sector solutions. Federal procurement preferences for authenticated content would drive adoption, while targeted tax incentives could accelerate investments in verification infrastructure. Implementing risk management requirements for regulated industries would further strengthen the ecosystem, complemented by research and development funding for fundamental technologies.

5. Support Statutory Authority for Digital Identity Protection

The Administration should provide clear support for pending legislation such as the NO FAKES Act and COPIED Act while ensuring robust enforcement mechanisms. This legislative framework should establish criminal penalties for malicious identity exploitation and create civil remedies for unauthorized use. Additionally, developing cross-border enforcement mechanisms is essential, as is protecting legitimate creative and fair use expressions to balance innovation with security.

Implementation Considerations

Private Sector Leadership

The most effective implementation path relies on private sector innovation within a clear regulatory framework. Rather than government mandates, we should encourage industry-led technical standards with government endorsement that create consistency without stifling creativity. Market-driven implementation approaches will ensure solutions remain competitive and cost-effective.

The solutions to these challenges, in fact, already exist.

- Digital watermarking has been a digital cinema standard since 2005¹⁴
- Formalized consent frameworks across multiple industries (e.g. healthcare, education)
- Authentication systems are already standard in cybersecurity (MFA/KYC)

The adoption process should be driven by competitive advantage. This approach allows for phased deployment that naturally prioritizes critical sectors first while giving other industries appropriate time to integrate verification technologies into their workflows.

American companies are uniquely positioned to define global standards in digital identity verification, creating export opportunities and ensuring foreign competitors must follow U.S.-led approaches. This strengthens America's technological sovereignty while simultaneously expanding market reach for domestic firms.

International Coordination

Digital identity protection requires international alignment with like-minded nations. Harmonizing standards with key allies creates interoperability across borders, while specific provisions in trade agreements can accelerate adoption of verification systems.

Diplomatic engagement on global norms is essential for establishing consistent approaches to digital identity protection. These approaches must respect national

¹⁴ CreativePro Staff, "[Major Movie Studios Specify Digital Watermarking for Digital Cinema](#)," CreativePro, July 29, 2005

sovereignty while enabling effective international cooperation against synthetic media threats. Additionally, thoughtful export control considerations for advanced verification technologies will help protect American innovations in this critical space while allowing beneficial commercial applications to flourish in international markets.

Balanced Implementation Timeline

An effective implementation strategy must balance urgency with practical constraints:

- Critical communications protection: 12-18 months
- Commercial media implementation: 18-36 months
- Comprehensive ecosystem deployment: 36-48 months

Economic Opportunity

The market for digital identity protection solutions is projected to exceed \$500 billion globally by 2028, with particularly strong growth in the following sectors:

Sector	Use Case	Market Value
Financial Services	Transaction Verification	\$144B (anti-fraud solutions)
Government	Secure Documentation	\$89B (global govt contracts)
Healthcare	TeleHealth Reimbursements	\$78B (global healthcare contracts)
Media & Entertainment	Performer Protection & Licensing	\$63B (studio compliance, monetization)
Legal	Remote Notarization	\$19B (legal tech vertical)
Social Media	Content Authenticity	\$33B (trust & safety tools)
Manufacturing	Industrial Safety Compliance	\$27B (industrial IoT security)
Law Enforcement	Authentication holds up in court	\$48B (legal confirmation tools)

These opportunities translate directly to American jobs - conservative estimates project over 350,000 new high-paying positions in digital verification technologies by 2028, with particular concentration in heartland states with strong technical universities and lower operating costs.

Conclusion: A Call for American Leadership

Digital identity protection represents one of the most pressing national security challenges facing America today, yet also presents a tremendous opportunity for

American innovation and leadership. With synthetic media capabilities advancing exponentially, the window for establishing effective protections is rapidly closing.

Fortunately, the technology to address this crisis exists in the private sector. What began as work to protect performers has revealed broader implications for all citizens. The solutions developed for this specific context can benefit everyone, from protecting children against exploitation to preventing election interference and securing critical infrastructure.

What is lacking is the coordinated policy and technology framework necessary to deploy these solutions at scale. By establishing clear standards, creating appropriate market incentives, and focusing on critical infrastructure protection, the Administration can catalyze a market-driven solution to this growing threat.

America's technological leadership in artificial intelligence depends on establishing digital trust. By taking decisive action on digital identity protection, this Administration can secure America's position as the global leader in responsible AI development while simultaneously protecting our critical national interests.